

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 28, 2026
8:30 AM/1:30 PM

10. SCOTT RUSSELL V. OLIVIA RUSSELL

23FL0133

Petitioner filed a Request for Order (RFO) on February 26, 2026, to clarify the court's January 8, 2026 orders. Respondent was properly served on March 2, 2026. Petitioner is seeking an order clarifying the exchange days and times for the minors.

Respondent filed a responsive declaration on April 2, 2026. It was served on April 1, 2026. Respondent insists Petitioner's parenting time is Wednesday through Sunday on the 5-day portion of the 2-2-5 schedule.

Respondent filed a further responsive declaration on May 13, 2026. It was served on Petitioner on May 13, 2026.

Petitioner filed a reply declaration on May 14, 2026. It was served on May 14, 2026.

The court has read and considered the filings as outlined above. To clarify, the parties are to use a 2-2-5-5 schedule. Respondent has physical custody of the minors on Monday and Tuesday. Petitioner has physical custody of the minors Wednesday and Thursday. The parties then rotate Friday, Saturday, and Sunday. All exchanges are at school. That includes the transition between Sunday to Monday, Respondent's parenting time begins with the drop off at school. If there is no school, the exchanges are at 11:00 AM at a location agreed upon by the parties.

There is no need for make-up time to be provided. Respondent has received the proper parenting time. The court denies Respondent's request for Family Code section 271 sanctions. The court finds this does not come within the provisions of Family Code section 271. Further, Respondent is not represented by counsel, as such an award of sanctions in the form attorney's fees is improper.

All prior orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #10: TO CLARIFY THE COURT'S JANUARY 8, 2026 ORDER - THE PARTIES ARE TO USE A 2-2-5-5 SCHEDULE. RESPONDENT HAS PHYSICAL CUSTODY OF THE MINORS ON MONDAY AND TUESDAY. PETITIONER HAS PHYSICAL CUSTODY OF THE MINORS WEDNESDAY AND THURSDAY. THE PARTIES THEN ROTATE FRIDAY, SATURDAY, AND SUNDAY. ALL EXCHANGES ARE AT SCHOOL. THAT INCLUDES THE TRANSITION BETWEEN SUNDAY TO MONDAY, RESPONDENT'S PARENTING TIME

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BEGINS WITH THE DROP OFF AT SCHOOL. IF THERE IS NO SCHOOL, THE EXCHANGES ARE AT 11:00 AM AT A LOCATION AGREED UPON BY THE PARTIES.

THERE IS NO NEED FOR MAKE-UP TIME TO BE PROVIDED. RESPONDENT HAS RECEIVED THE PROPER PARENTING TIME. THE COURT DENIES RESPONDENT'S REQUEST FOR FAMILY CODE SECTION 271 SANCTIONS.

ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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12. NATHANIEL DEPEE V. CHERYL COVINGTON

23FL0491

Petitioner filed an Order to Show Cause and Affidavit for Contempt (OSC) on October 17, 2025. Respondent was personally served on November 1, 2025.

Parties appeared on March 19, 2026. The court advised Respondent of their constitutional rights and appointed the office of the Public Defender. The court continued the hearing for further arraignment.

Parties are ordered to appear.

TENTATIVE RULING #12: PARTIES ARE ORDERED TO APPEAR.